

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB2069 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Nick Archer

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 2069

By: Kern of the Senate

and

Archer of the House

FLOOR SUBSTITUTE

An Act relating to nuclear energy; defining terms; creating the Oklahoma Advanced Nuclear Energy Office; stating purposes of Office; establishing certain duties for the Office; prohibiting certain gifts; prohibiting requirement that certain project be in a specific location; authorizing the adoption of certain rules; requiring Oklahoma Corporation Commission promulgate certain rules; stating Commission shall not be required to adopt certain language; stating the constitutional or statutory authority of Commission shall not be superseded; requiring Governor appoint Director; listing requirements for Director; listing duties of Director; authorizing the hiring of staff; requiring submission of certain strategic plan; authorizing the hiring of a Nuclear Permitting Coordinator; requiring coordinator have familiarity with certain processes; listing duties of coordinator; requiring coordinator provide certain assistance; requiring certain documentation be kept and available to public upon request; creating the Oklahoma Advanced Nuclear Development Revolving Fund; stating type of fund; stating content of fund; listing purpose of fund; providing for expenditures; requiring the establishment of certain grant program; requiring certain actions be complete grants may be issued; requiring specific legislative appropriations for grant issuance; providing details on granting of funds; requiring applicants submit certain

1 information; prohibiting applicants from receiving
2 certain grants; requiring certain notice of proposed
3 grants; disallowing approval of certain grants if
4 disapproved by certain individuals; authorizing
5 extension of review; requiring certain written
6 agreement; detailing terms of written agreement;
7 limiting amount of grant awards; authorizing certain
8 reimbursement grants; listing expenses that qualify
9 for reimbursement; requiring the showing proof of
10 certain expenses; limiting amount of reimbursement
11 grants; authorizing the promulgation of certain
12 rules; requiring certain permit for certain
13 reimbursement grant; authorizing the distribution of
14 grants on a rolling basis; stating process for
15 distribution; authorizing grant for completion of an
16 operating nuclear reactor that make certain
17 interconnection; requiring the establishment of
18 certain procedures; requiring certain application
19 evaluation be made; listing criteria for evaluation;
20 requiring certain information submitted be deemed
21 confidential; providing for codification; and
22 declaring an emergency.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 10.10 of Title 74, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1. "Advanced nuclear project" means an electric generation
facility that relies on an advanced nuclear reactor to generate
power, steam, or heat, a nuclear fuel cycle facility that supplies
advanced nuclear reactors, or associated technologies supporting the
advanced nuclear energy industry;

1 2. "Advanced nuclear reactor" means a range of nuclear reactor
2 technologies determined by the United States Regulatory Commission
3 to be either of generation III+ or generation IV, including large
4 light water reactors, small modular reactors, microreactors, and
5 nuclear cogeneration;

6 3. "Construction permit" means a permit issued by the
7 Regulatory Commission for the construction of:

- 8 a. a nuclear production or utilization facility, or
- 9 b. a research or test reactor that contributes to the
10 future commercialization of that research or test
11 reactor technology;

12 4. "Director" means the Director of the Advanced Nuclear Energy
13 Office;

14 5. "License" means a license issued by the Regulatory
15 Commission that authorizes the license holder to construct and
16 operate a nuclear power facility, such as a nuclear plant at a
17 specific site, with specified conditions;

18 6. "Office" means the Oklahoma Advanced Nuclear Energy Office
19 established under Section 2 of this act;

20 7. "Regulatory Commission" means the United States Nuclear
21 Regulatory Commission; and

22 8. "Utility Commission" means the Oklahoma Corporation
23 Commission.
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1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 10.11 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 A. There is hereby created the Oklahoma Advanced Nuclear Energy
5 Office. The Office shall be an office administratively housed
6 within the Governor's office and shall be assigned to the Oklahoma
7 Secretary of Energy and Environment.

8 B. The purposes of the Office are to provide statutory and
9 regulatory readiness for advanced nuclear energy and to:

10 1. Provide strategic leadership for the advanced nuclear
11 reactor system in this state;

12 2. Promote the development of advanced nuclear reactors for
13 dispatchable electric generation while creating high-wage advanced
14 manufacturing jobs in this state;

15 3. Advance innovative nuclear energy generation technologies
16 while delivering safe, reliable, and clean energy solutions that
17 address the state's growing demand;

18 4. Enhance the state's energy security, foster economic growth,
19 and ensure the safety of future nuclear energy generation
20 development;

21 5. Identify barriers to the financial viability of nuclear
22 energy generation and regulatory and licensing complexities that
23 increase risk to developers of nuclear energy;

1 6. Leverage the expertise and capacity of institutions of
2 higher education, the nuclear energy industry, the industrial
3 manufacturing sector, and regulatory stakeholders to develop a
4 comprehensive strategic plan to ensure the development of advanced
5 nuclear energy and associated technologies in this state; and

6 7. Support the development of an advanced nuclear energy supply
7 chain and associated technologies in this state.

8 C. The Office shall:

9 1. Develop and propose a comprehensive statutory and regulatory
10 framework for advanced nuclear energy. The statutory and regulatory
11 framework developed by the Office shall be substantive and ready for
12 implementation;

13 2. Draft and recommend rules addressing areas of state
14 jurisdiction not preempted by the United States Nuclear Regulatory
15 Commission;

16 3. Coordinate with the Oklahoma Corporation Commission;

17 4. Identify any statutory gaps requiring legislative action;

18 5. Submit completed statutory and regulatory framework and
19 recommendations for advanced nuclear energy to the Governor, Speaker
20 Pro Tempore of the Oklahoma State Senate, the Speaker of the
21 Oklahoma House of Representatives, and the Oklahoma Corporation
22 Commission, by December 1, 2027.

1 D. The Office may not accept a gift, grant, or loan from or
2 contract with an applicant for or a beneficiary of a grant provided
3 pursuant to this act.

4 E. The Office may not require an advanced nuclear project to be
5 located in a specific location.

6 F. The Office may promulgate rules as necessary to carry out
7 the provisions of this act.

8 G. The Oklahoma Corporation Commission shall promulgate rules
9 within its constitutional and statutory jurisdiction to implement
10 the regulatory framework provided by the Office. The Corporation
11 Commission shall not be compelled to adopt specific draft language
12 provided by the Office, but shall initiate rulemaking following
13 submission of completed regulatory framework. Nothing in this act
14 shall be construed to limit, impair, supersede, or otherwise affect
15 the constitutional or statutory authority of the Oklahoma
16 Corporation Commission over public utilities, electric generation
17 facilities, transmission providers, natural gas utilities, or any
18 other entity subject to its jurisdiction.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 10.12 of Title 74, unless there
21 is created a duplication in numbering, reads as follows:

22 A. The Governor shall appoint a Director of the Oklahoma
23 Advanced Nuclear Energy Office or may assign the duties of the
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1 Director to the Oklahoma Secretary of Energy and Environment. The
2 Director shall serve at the pleasure of the Governor.

3 B. The Director shall have demonstrated:

- 4 1. Experience in the field of advanced nuclear energy; and
- 5 2. Executive and organizational ability.

6 C. The Director shall not have any direct or indirect interests
7 that substantially conflict with the Director's duties.

8 D. The Director shall:

- 9 1. Manage the affairs of the Office;
- 10 2. Administer programs established by this act; and
- 11 3. Establish appropriate milestones and standards to ensure
12 proper use of money pursuant to this act.

13 E. The Director may hire staff as necessary to implement the
14 duties of the Office pursuant to this act.

15 SECTION 4. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 10.13 of Title 74, unless there
17 is created a duplication in numbering, reads as follows:

18 Not later than December 1 of each even-numbered year, the
19 Director of the Oklahoma Advanced Nuclear Energy Office shall submit
20 to the Governor, the President Pro Tempore of the Oklahoma State
21 Senate, and the Speaker of the Oklahoma House of Representatives a
22 strategic plan for furthering the goals, purposes, and objectives
23 established by this act.

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1 SECTION 5. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 10.14 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The Director of the Oklahoma Advanced Nuclear Energy Office
5 may employ a Nuclear Permitting Coordinator to assist businesses
6 throughout the nuclear energy permitting and regulatory process.

7 B. A Nuclear Permitting Coordinator shall have a demonstrated
8 familiarity with the permitting and regulatory process in this
9 state.

10 C. The Nuclear Permitting Coordinator shall:

11 1. Act as a single point of contact for stakeholders during the
12 nuclear energy permitting and regulatory process;

13 2. Identify active or likely siting opportunities and required
14 permits and approvals for nuclear energy generation sites and key
15 personnel; and

16 3. Provide guidance for regulated persons navigating local,
17 state, and federal regulations for nuclear energy generation
18 facilities.

19 D. The Nuclear Permitting Coordinator shall make any assistance
20 provided under this section equally available to all businesses
21 engaged in the nuclear energy permitting and regulatory process.

22 E. The Nuclear Permitting Coordinator shall document all
23 activities carried out in the provision of assistance under this
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1 section and make that information available to the public on
2 request.

3 SECTION 6. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 10.15 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 There is hereby created in the State Treasury a revolving fund
7 for the Oklahoma Advanced Nuclear Energy Office, established under
8 Section 2 of this act, to be designated the "Oklahoma Advanced
9 Nuclear Development Revolving Fund". The fund shall be a continuing
10 fund, not subject to fiscal year limitations and shall consist of
11 such sources as may be provided by law and any available federal
12 funding. All monies accruing to the credit of the fund shall be
13 budgeted and expended by the Oklahoma Advanced Nuclear Energy Office
14 for the purposes provided by this section. No monies may be
15 expended absent a specific legislative authorization. Subject to
16 the availability of funding, the Oklahoma Advanced Nuclear Energy
17 Office shall utilize the fund for the restricted purposes of
18 providing reimbursement-based grants to eligible businesses,
19 nonprofit organizations, and governmental entities, including
20 institutions of higher education, through the programs established
21 in this act and to pay for reasonable and necessary costs for staff
22 support necessary to facilitate the work of the Oklahoma Advanced
23 Nuclear Energy Office. Expenditures from the fund shall be made
24 upon warrants issued by the State Treasurer against claims filed as

1 prescribed by law with the Director of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 7. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 10.16 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 A. The Oklahoma Advanced Nuclear Energy Office shall establish
7 grant programs under this act and the Director shall administer
8 those programs. However, grants may not be awarded until the
9 regulatory framework required by Section 2 of this act has been
10 completed and submitted and the Oklahoma Corporation Commission has
11 promulgated necessary rules within its jurisdiction.

12 B. The Office may provide a grant, subject to the availability
13 of funds specifically appropriated by the Legislature, pursuant to
14 this act only to reimburse expenses paid by a recipient using the
15 recipient's own funds. No grant shall be awarded absent a specific
16 legislative appropriation for that fiscal year. An applicant for a
17 grant under the provisions of this act may have received financial
18 assistance or incentives from a local, state, or federal source, but
19 the Office may not provide a grant pursuant to this act to reimburse
20 expenses paid by a recipient or the recipient's project partner
21 using financial assistance or incentives from the local, state, or
22 federal source. An applicant shall provide the Office with detailed
23 information regarding any financial assistance or incentives
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1 requested or received for the project for which it is requesting
2 grant funds.

3 C. An applicant that has received state-appropriated money for
4 an advanced nuclear reactor is not eligible to receive a grant under
5 Section 9 of this act.

6 D. The Office shall submit to the President Pro Tempore of the
7 Oklahoma State Senate and the Speaker of the Oklahoma House of
8 Representatives a notice of each grant the Office proposes to
9 approve. The Office may not approve the grant if either of those
10 officers submit a written communication to the Office disapproving
11 the grant on or before the thirtieth day after the date the Office
12 submits the notice of the proposed grant to those officers. The
13 President Pro Tempore of the Oklahoma State Senate or Speaker of the
14 Oklahoma House of Representatives may extend the review deadline for
15 an additional fourteen (14) days by submitting a written notice to
16 that effect to the Office before the expiration of the initial
17 review period.

18 E. Before awarding a grant pursuant to this act, the Office
19 shall enter into a written agreement with the grant applicant. A
20 written agreement under this subsection shall:

21 1. Specify benchmarks and milestones for the completion of the
22 project for which the grant is provided; and
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1 2. Require the grant recipient to repay to the state any money
2 received from the grant if the recipient fails to reach the
3 specified benchmarks.

4 F. The Office may not during a state fiscal year award out of
5 money appropriated for grants pursuant to this act a total amount
6 greater than:

7 1. Twenty percent (20%) of the appropriated money for grants
8 provided under Section 8 of this act; and

9 2. Eighty percent (80%) of the appropriated money for grants
10 provided under Section 9 of this act.

11 SECTION 8. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 10.17 of Title 74, unless there
13 is created a duplication in numbering, reads as follows:

14 A. The Oklahoma Advanced Nuclear Energy Office may, subject to
15 the availability of funds specifically appropriated by the
16 Legislature, provide a reimbursement grant from the Oklahoma
17 Advanced Nuclear Development Revolving Fund, created in Section 6 of
18 this act, pursuant to this section for the expenses associated with
19 or required for initial development of an advanced nuclear project
20 in this state. However, grants may not be awarded until the
21 regulatory framework required by Section 2 of this act has been
22 completed and submitted and the Oklahoma Corporation Commission has
23 promulgated necessary rules within its jurisdiction. No grant shall
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1 be awarded absent a specific legislative appropriation for that
2 fiscal year.

3 B. Expenses that qualify for reimbursement under this section
4 are limited to expenses attributable or allocable to:

5 1. Technology development, including university technology
6 development;

7 2. Feasibility studies;

8 3. Site planning, including conceptual site-specific
9 engineering studies;

10 4. Front-end engineering design;

11 5. Site and environmental characterization;

12 6. Regulatory commission early site permit work;

13 7. Preparation of the construction permit or license
14 application to the Regulatory Commission;

15 8. Developing manufacturing capacity and readiness;

16 9. Fuel processing, manufacturing, and fabrication activities
17 essential to the fuel cycle supply;

18 10. Preparation of local, state, and nonregulatory commission
19 federal permits; and

20 11. Regulatory Commission licensing fees.

21 C. To be eligible for a reimbursement grant under this section,
22 an applicant shall provide with an application proof of incurred
23 expenses described by subsection B of this section.

1 D. A grant provided under this section may not exceed the
2 lesser of:

3 1. Fifty percent (50%) of the amount of qualifying expenses
4 associated with the project; or

5 2. Twelve Million Five Hundred Thousand Dollars
6 (\$12,500,000.00).

7 E. The Office by rule shall establish procedures for the
8 application for and provision of a grant pursuant to this section.

9 SECTION 9. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 10.18 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 A. The Oklahoma Advanced Nuclear Energy Office may provide a
13 reimbursement grant, subject to the availability of funds
14 specifically appropriated by the Legislature, from the Oklahoma
15 Advanced Nuclear Development Revolving Fund, created in Section 6 of
16 this act, pursuant to this section for expenses associated with the
17 construction of an advanced nuclear project in this state. However,
18 grants may not be awarded until the regulatory framework required by
19 Section 2 of this act has been completed and submitted and the
20 Oklahoma Corporation Commission has promulgated necessary rules
21 within its jurisdiction. No grant shall be awarded absent a
22 specific legislative appropriation for that fiscal year.

23 B. Expenses that qualify for reimbursement under this section
24 are limited to expenses associated with:

1 1. The United States Nuclear Regulatory Commission's review of
2 the construction permit or license application;

3 2. Procurement and development of long-lead components; or

4 3. Construction activities, including the manufacture,
5 fabrication, quality assurance, placement, erection, installation,
6 modification, inspection, or testing of an advanced nuclear project.

7 C. To be eligible for a reimbursement grant under this section,
8 an applicant must provide with an application proof of incurred
9 expenses described by subsection B of this section.

10 D. A grant provided under this section may not exceed the
11 lesser of:

12 1. Fifty percent (50%) of the amount of qualifying expenses
13 associated with the project; or

14 2. One Hundred Twenty Million Dollars (\$120,000,000.00).

15 E. The Office by rule shall establish procedures for the
16 application for and provision of a grant under this section.

17 F. The Office may not provide a reimbursement grant for a
18 project under this section until the Regulatory Commission has
19 docketed a construction permit or license application for the
20 project.

21 G. The Office by rule shall establish a process to distribute
22 the proceeds of each grant awarded under this section to the grant
23 recipient on a rolling basis for qualifying expenses. The process
24 shall include milestones associated with:

1 1. The Regulatory Commission's permitting process; and

2 2. The recipient's financial investment decisions relating to
3 the project.

4 SECTION 10. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 10.19 of Title 74, unless there
6 is created a duplication in numbering, reads as follows:

7 A. The Oklahoma Advanced Nuclear Energy Office may provide a
8 grant, subject to the availability of funds specifically
9 appropriated by the Legislature, pursuant to this act for the costs
10 associated with the completion of an operational advanced nuclear
11 reactor in this state that is interconnected with the regional
12 transmission operator power grid. However, grants may not be
13 awarded until the regulatory framework required by Section 2 of this
14 act has been completed and submitted and the Oklahoma Corporation
15 Commission has promulgated necessary rules within its jurisdiction.
16 No grant shall be awarded absent a specific legislative
17 appropriation for that fiscal year.

18 B. The Office, in consultation with the Oklahoma Corporation
19 Commission, by rule shall establish the amount of a grant the Office
20 shall provide under this section on a per megawatt basis according
21 to the generation capacity of the advanced nuclear reactor.

22 C. The Office, in consultation with the Oklahoma Corporation
23 Commission, by rule shall establish procedures for:

24 1. The application for and award of a grant under this section;

2. The administration of the grant program; and

3. Providing grants according to a tiered system based on the amount of electricity in megawatts provided to the regional transmission operator grid by an advanced nuclear reactor.

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 10.20 of Title 74, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Advanced Nuclear Energy Office shall evaluate each application for a grant pursuant to this act based upon the project's potential benefit to this state and the grant applicant's:

1. Quality of services and management;

2. Efficiency of operations;

3. Access to resources essential for operating the project for which the grant is requested, such as land, water, and reliable infrastructure, as applicable;

4. Application for or docketing of a permit or license with the United States Nuclear Regulatory Commission; and

5. Ability to repay the grant if project benchmarks are not met.

SECTION 12. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 10.21 of Title 74, unless there is created a duplication in numbering, reads as follows:

1 Information submitted to the Oklahoma Advanced Nuclear Energy
2 Office in an application for a grant pursuant to this act is
3 confidential and not subject to disclosure.

4 SECTION 13. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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